TN GOLD-OPTIMIST MINE (PVT) LTD

And

TN GOLD-ARCTURUS MINE(PVT) LTD

Versus

PROVINCIAL MINING DIRECTOR

And

METALLON GOLD ZIMBABWE(PVT) LTD

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
CHILIMBE J
HARARE, 16 September 2025 & 19 May 2026

Opposed application

F. Mahere for the applicants
T. Mpofu for the second respondent
No appearance for first respondent

CHILIMBE J

BACKGROUND

[1] Under judgment number HH 344-25, I disposed of second respondent`s preliminary point raised from the bar. I now address its further objections on prescription and material dispute of facts raised in the papers. The first respondent ("the Provincial Mining Director") is not a participant in these proceedings. I will return to the objections after setting out the basis of the dispute.

THE TRANSACTION

[2] The first applicant ("TN Optimist Mine") acquired the entire issued share capital of second applicant ("TN Arcturus Mine") from second respondent ("Metallon") for a consideration of US $2,250,000.00. I will refer to this event as "the transaction". The

transaction was recorded in an agreement titled "Sale of Shares Agreement"[1] executed by the parties on 31 October 2017.TN Optimist Mine was represented by a special purpose vehicle whose further reference is not relevant to the proceedings.

[3] TN Arcturus Mine was originally named Acturus Mining Company (Pvt) Ltd ("Acturus Mining Company"). At the time of the transaction, it was (obviously) wholly owned by Metallon and had been, in continuous operation since 1966[2] in the eponymously named area/town of Arcturus, 29 km east of Harare. The mining operations commenced in 1891

[4] For avoidance of confusion, I may state that from the papers before me, Acturus Mining Company was renamed TN Arcturus Mine after the transaction. Acturus Mining Company owed, as at that same transaction date, a number of creditors liabilities amounting to US$ 8,425,879.58. TN Optimist Mine assumed the debts under a scheme of arrangement factored into the Share Purchase Agreement.

[5] I summarise the key terms of the Share Purchase Agreement relevant to the preliminary points under considerations; -clause 1.2.10 defined "due diligence" as a review by TN Optimist Mine, of Acturus Mining Company`s legal, operational and financial status. Clause 2.5 -confirmed that as at the time of executing the Sale of Shares Agreement, TN Optimist Mine had indeed conducted such due diligence. And that it had agreed to conclude the agreement on the basis of the said investigations.

[6] Clause 7-set out the hand over and take over procedure to mark the consummation of the Sale of Shares Agreement. Metallon was to deliver to TN Optimist Mine, "Documents of Title" which included the Fixed Asset Register (defined in clause 1.2.9.12 and 1.2.11), Inventory listing together with valuation reports, (defined in clause 1.2.9.14), and title deeds. A critical component of the inventory were the mining claims or leases.

[7] I note that Clause 1, the Interpretation section of the Sale of Shares Agreement, did not define "Mining Lease" although the term (capitalised) was used variously in the agreement. Clause 2.1 of the contract recorded that Acturus Mining Company was conducting gold mining operations under "... mining lease Registered number 33 dated 13 August 2015, as described in General Notice 473 of 2014, issued by the Government of Zimbabwe".

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[1] Under clause 1.2.2 "Agreement" was further defined as "this sale of shares and cession of mining lease agreement and the annexures hereto, as amended from time to time", a term applied in the affidavits filed of record.
[2] See report titled "A Competent Person`s Report on the Mineral Asset of Acturus" at record page 364

[8] The nub of this dispute is whether under the Sale of Shares Agreement, "mining lease Registered number 33" is synonymous with "Mining Lease". The papers before me refer to (i) claims lying under Mining Lease 33 and (ii) claims lying outside Mining Lease 33. Claims lying outside Mining Lease 33 generated the dispute as Metallon argues that they were excluded from the inventory whilst the applicants insist that they formed part of the sale assets.

[9] This disconnect indicates how each side perceives the debt as defined in s 2 of the Prescription Act [Chapter 8:11] ("the Prescription Act"). The debt in turn, determines the period of prescription per s 15 (d) of the Prescription Act which the parties agreed was three (3) years. But that debt also constitutes part of the causa whose trigger is used to reckon the running of prescription. The underlying dispute and the points *in limine* therefore, call for the court`s interpretation of contractual terms. The guidance in the seminal decision of *Magodora v Care International* 2014 (1) ZLR 397 (S) will thus come to the fore in such exercise. I will return to this point in due course.

THE DISPUTE

[10] The hand over process envisaged in clause 7 of the contract generated disagreement. It is not quite clear as to when exactly this process was undertaken. But two emails are key. On 24 November 2017, Mr George Museta, then Legal Advisor to Metallon advised Mr Tawanda Nyambirai, the applicants` Chief Executive Officer (and deponent to their affidavits herein) that claims outside Mining Lease 33 did not form part of the transaction.

[11] Mr Nyambirai protested. In the founding affidavit, he detailed the due diligence processes preceding the transaction. The exercise had been undertaken by his officers or agents who included engineers, metallurgists, geologists and other experts. The deponent also attached five (5) supporting affidavits from some such persons being Aaron Mudhuviwa, I. Sinosi, S. Mandoza, S. Mwanza and Miriam Chimutsa (see paragraph7 of the founding affidavit).

[12] In the same vein, he stated that a substantial volume of documents, maps, reports and correspondence was accumulated during the due diligence process. In between were meetings, consultations, site visits and engagements with the Provincial Mining Director`s

office. These endeavours necessitated the creation of a data room managed by Miriam Chimutsa, then Chief Operating Officer of the applicants. Mr Nyambirai`s concluding averment being that all such efforts and documentation confirmed that claims lying outside Mining Lease 33 formed part of the sale and asset inventory.

[13] In paragraph 4.2 of his founding affidavit, Mr Nyambirai also averred that a schedule of the claims outside Mining Lease 33 had in any event, been delivered together with the other Documents of Title as contemplated in clause 7 of the Sale of Shares Agreement. This averment was contested by Metallon.

[14] That aside, Mr Nyambirai indicated that in order to assert its rights over the disputed claims, TN Arcturus Mine proceeded to secure from the Provincial Mining Director, Inspection Certificates for the claims outside the Mining Lease 33, from October 2017 until 2023. Matters came to a head in 2023 when the Provincial Mining Director refused to issue such certificates prompting the present application.

[15] Mr Hapson Makotore, Metallon`s Legal Advisor rendered a different version regarding the disputed claims. Metallon`s position was that the Sale of Shares Agreement excluded the claims outside Mining Lease 33. There was a simple explanation as to why those claims had featured consistently in the documentation referred to by Mr Nyambirai. Acturus Mining Company had operated, prior to its divestiture, as a single economic entity with Metallon`s other related entities. Acturus Mining Company had thus been permitted to exploit those claims under that arrangement. The claims remained, nonetheless registered under Metallon.

[16] As such, Mr Makotore contended that as of 24 November 2017, the applicants were aware (thus in possession of all the facts) that Metallon was challenging their claim to the mining assets outside Mining Lease 33. But for seven (7) years, the applicants did nothing to assert such rights, leading to the present attempt being intercepted by prescription. In any event, he argued, the applicants paid for some but not all the claims` Inspection Certificates. The deponent attached a list of claims in respect of which Inspection Certificates were allegedly not secured.

[17] Further, Metallon had, according to Mr Makotore, been precluded from exercising proper administrative steps to secure the Inspection Certificates due to its placement under a defective corporate rescue arrangement which was only reversed in 2021 by the Supreme Court[3]. Finally, Mr Makotore deposed that in a case of clear concession that the disputed claims fell outside the transaction, Ms Miriam Chimutsa had, at some stage after conclusion of the Sale of Shares Agreement, offered to purchase the contested claims from Metallon.

[18] Mr Nyambirai dismissed the allegation that the applicants did not secure Inspection Certificates for all the claims outside Mining Lease 33 forming part of the transaction. He contended, in his answering affidavit, that Mr Makotore`s list related to different claims. As for Ms Chimutsa`s offer, Mr Nyambirai`s reply was that (i) Ms Chimutsa could not properly bind applicants in that regard, (ii)had only made a without prejudice offer in a bid to resolve the impasse, (iii) her purported offer was, in any event neither accepted nor progressed, and (iv) that such misstep had no material bearing on the parties` terms as recorded in their memorandum. I now turn to the arguments.

THE FIRST PRELIMINARY POINT: PRESCRIPTION

[19] Mr *Mpofu* for Metallon tendered a simple argument. The declaratory relief sought by the applicants was predicated on TN Arcturus Mine`s ownership of the claims. It pointed to ownership of the claims as the debt. I set out in paraphrase, the relief sought; -

i. That the contested claims formed part of TN Arcturus Mine's assets inventory as at the time of the latter`s acquisition by TN Optimist Mine.

ii. That any Inspection Certificates as may have been issued by the Provincial Mining Director to any party be declared invalid.

iii. That the Provincial Mining Director be ordered to issue the applicants with Inspection Certificates for the claims in question.

[3] Under the famous decision of *Metallon Gold Zimbabwe (Pvt) Ltd & 3 Ors v Shatirwa Investments (Pvt) Ltd & 3 Ors* SC 107/21.

iv. That Metallon and any other party claiming title to the claims be interdicted from working or dealing in the claims.

[20] In Mr. *Mpofu*'s own words, ownership was "first and centre" to the remedy prayed for. As such, the court had to establish whether proceedings to secure such remedy had been mounted within the three (3) year period fixed by s 15 (d) of the Prescription Act.

[21] It was not in dispute, submitted counsel, that Metallon had on 24 November 2017, laid a claim to the mining area outside Mining Lease 33. This contestation marked the applicants` knowledge of all the facts they needed to raise a suit to assert their rights. The refusal by the Provincial Mining Director to conduct the inspection pre-requisite to issuance of the Inspection Certificates in 2023 did not constitute the core of the cause of action.

[22] Mr *Mpofu* referred to a wealth of authorities on prescription including *Abrahamse & Sons v SA Railways & Harbours* 1933 CPD 626; *Patel v Controller of Customs & Excise* 1982 (2) ZLR 82 (H); *Denton v Director of Customs & Excise* HH-216-89; *Hodgson v Granger & Anor*, HH-133-91, *Dube v Banana* 1998 (2) ZLR 92 (H) and *Gumbo v Sunganayi Motorways (Pvt) Ltd* 1988 (2) ZLR 83 (HC).

[23] In response, Ms *Mahere* for the applicants submitted that the cause of action arose when the Provincial Mining Director refused to issue the Inspection Certificates. It was counsel`s position that firstly, the claims were handed over in terms of the contract. Secondly, that TN Arcturus Mine was in peaceful and undisturbed possession of the claims concerned since 2017. Thirdly, that since 2018, TN Arcturus Mine had been paying for and obtaining the requisite Inspection Certificates. These certificates were duly issued by the Provincial Mining Director as officialdom to TN Arcturus Mine.

THE SECOND PRELIMINARY POINT: MATERIAL DISPUTES OF FACT

[24] Mr *Mpofu* took the view that the factual contestations raised in the papers ill placed the motion proceedings for resolution on the papers. He pointed to material disputes of fact under

a number of heads which I replicate hereunder from paragraph 2.5 of counsel`s heads of argument[4]; -

i. It is common cause that a dispute arose between the parties as soon as the agreement was concluded. The parties could not agree on what they had "agreed on". The dispute is accordingly not a recent invention.

ii. The nature of the dispute either speaks to a mistake or to lack of consensus. At worst, it speaks to an attempt to defraud. There is no way any of those could be resolved outside the leading of viva voce evidence.

iii. As matters stand, title is registered in the name of second respondent. It is common cause that second respondent did not sell its business or assets.

iv. In the face of the dispute between the parties, applicants offered to purchase these very shares. Their explanation for taking such a position which is inconsistent with their present efforts needs to be tested by the cross examiner. The explanation cannot be resolved outside the assessment of credibility.

v. The volte face from the offer to purchase to an attempt to assert rights is a matter that goes to credibility and requires the giving of and in good time, the assessment of evidence as well as demeanour.

vi. The letter making the offer to purchase the shares was not retracted. The position of Nyambirai that led to that offer not being pursued was not put to second respondent at the material time. There is therefore no objective evidence to support the position taken by the applicants.

[25] By approaching the court on motion against better judgment, the applicants took a risk to have their suit dismissed argued Mr *Mpofu.* He urged the court to adopt the approach taken in decisions such as *Mashingaidze v Mashingaidze* 1995 (1) ZLR 219 (H), *Masukusa v National Foods Ltd & Anor* 1983 (1) ZLR 232 (HC) and *Savanhu v Marere & 2 Ors* SC 22-99 where the court dismissed, rather than adopted the robust approach of referring the matter to trial. In *Savanhu* v *Marere*, it was held that; -

> "The appellant chose to proceed by way of a court application to claim the order of specific performance against the first respondent. As the proceedings were by way

[4] At record page 841

> of a court application and there were disputes of fact the final relief could only have been granted if the facts stated by the first respondent together with the admitted facts in the appellant's affidavit justified such an order. Plascon *Evans Paints Ltd v Van Riebeeck Paints (Pty) Ltd* 1984(3) SA 623(A) at 634H-635B."

[26] In response, Ms *Mahere* submitted that the matter disclosed no bona fide material dispute of fact incapable of resolution on the papers. She contended that such a scenario did not arise on the mere say so by a party. Herein, counsel argued that sufficient facts had been placed before the court to facilitate a finding. Metallon had, according to her, raised bald allegations and disputations unsupported by documentary evidence.

[27] Ms *Mahere* relied on the oft-cited remarks of MAKARAU JP (as she then was) in *Supa Plant Investments (Pvt) Ltd v Chidavaenzi* 2009 (2) ZLR 132 (H), *Chitoro v Payne & 6 Ors* HH 422-23 and *Dube v Murehwa & Ors* SC 68-21 where it was held at paragraph 27 that; -

> "The appellant's contentions that there were material disputes of fact, based as they were on bare denials that were not supported by any documents, were thus of no avail to her case. The law is clear that bald and unsubstantiated allegations do not establish a litigant's purported or announced position. [5]The court *a quo's* decision cannot therefore be faulted because the evidence placed before it established on a balance of probabilities that the first respondent had rights emanating from the lease agreement with the second respondent whilst the appellant only made bare allegations which were not sufficient to prove the existence of any material disputes of facts. In the circumstances, the appellant's first ground of appeal lacks merit and is hereby dismissed.

[28] Lastly, Ms *Mahere* indicated that Mr *Mpofu*`s arguments on the point invited the court to delve into the merits of the matter. Mr *Mpofu* in response, submitted that the point *in limine* had been properly raised. The irreconcilable differences were glaring and a commentary of the merits of the matter warranted.

ANALYSIS OF THE ARGUMENTS: -PRESCRIPTION

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[5] *Akhtar v Min of Public Commission* SC 173/97.

[29] The authorities cited by both counsel collectively set out the well-established principles to guide a court seeking to determine the question of prescription. A useful summary in my view was set out by this court in *Peebles v Dairibord Zimbabwe (Pvt) Ltd* 1999 (1) ZLR 41 (H). MALABA J (as he then was) observed as follows at page 46; -

> "The question for determination here is, when did Mr Peebles first have knowledge or is he to be deemed to have first had knowledge of the above-mentioned facts from which the debt arose? **The onus is on Dairiboard, which raised the defence of prescription, to show that Mr Peebles first had knowledge or should be deemed to have first had knowledge of such facts on any date more than three years prior to the date on which the summons was served on it,** that is to say, a date between 9 May and 30 September 1994 [Gericke v Sack 1978 (1) SA 821 (A); Brand v Williams 1988 (3) SA 908 (C) at 910B]. **The rule applied is the discovery or knowledge rule.** In the application of the rule contained in s 16(3) of the Act to decide whether Dairiboard has shown, on a balance of probabilities, that Mr Peebles acquired during the relevant period the requisite knowledge of the facts from which the cause of the action arose it is not necessary to seek knowledge of meticulous particulars of the cause of action. **The court must look at all the circumstances of the case and decide whether Mr Peebles had or should be deemed to have had knowledge of the broad or material facts establishing the essential elements of the cause of action."** [marked in bold for emphasis]

[30] The court must, from the above guidance, firstly identify the debt now injunctioned by prescription. Next, it must take into account the essential facts (from the surrounding circumstances) informing the existence of the cause. Thirdly, it will then ascertain when prescription began to run.

[31] The court must also deal with the question of onus. Does the defendant place facts before the court confirming when the plaintiff became aware of the existence of the debt. Put differently, proving when plaintiff became aware of all the facts necessary to enable the launch of proceedings to secure the desired relief. Again, emphasis is drawn to the nature of the cause of action rather than just the nature of the remedy sought.

[32] Mr *Mpofu* focussed on the remedy sought in seeking to prove that the facts constituting the causa were established in October 2017. Indeed, the applicants approached the court for discretionary relief in terms of s 14 of the High Court Act [Chapter 7:0] ("High Court Act"), which provides as follows; -

> 14 High Court may determine future or contingent rights
> The High Court may, **in its discretion**, at the instance of any interested person, **inquire into and determine any existing, future or contingent right or obligation**, notwithstanding that such person cannot claim any relief consequential upon such determination. [marked in bold for emphasis]

[33] The procedure and remedies espoused in s 14 of the High Court Act have been articulated in countless decisions in the jurisdiction. The leading authority of *Johnsen v AFC* 1995 (1) ZLR 65 (S) expressed the position as follows at page 72 follows; -

> "The **condition precedent to the grant of a declaratory order under s 14 of the High Court of Zimbabwe Act 1981 is that the applicant must be an —interested person,** in the sense of **having a direct and substantial interest in the subject matter of the suit** which could be prejudicially affected by the judgment of the court. **The interest must concern an existing, future or contingent right.** The court will not decide abstract, academic or hypothetical questions unrelated thereto. But the presence of an actual dispute or controversy between the parties interested is not a prerequisite to the exercise of jurisdiction. See *Ex parte Chief Immigration Officer* 1993 (1) ZLR 122 (S) at 129F-G; 1994 (1) SA 370 (ZS) at 376G-H; *Munn Publishing (Pvt) Ltd v ZBC* 1994 (1) ZLR 337 (S) and the cases cited. It was rightly not in contention before the court a quo that the appellant was an interested person. Accordingly, the first stage in the determination of whether it was competent to grant a declarator was met.
>
> **At the second stage of the enquiry, the court is obliged to decide whether the case before it is a proper one for the exercise of its discretion** under s 14 of the Act. **It must take account of all the circumstances of the matter.** See *Reinecke v Inc Gen Insurances Ltd* 1974 (2) SA 84 (A) at 95C; *Dyson v A-G* Page 73 of 1995 (1) ZLR 65 (H) [1911] 1 KB 410 (CA) at 417; *Burghes v A-G* [1911] 2 Ch

> 139 at 156. **What, in the end, constitutes a proper case is where some tangible and justifiable advantage to the applicant is shown to exist.** See *Adbro Invtm Co Ltd v Min of Interior & Ors* 1961 (3) SA 283 (T) at 285B-C; *Reinecke v Inc Gen Insurances Ltd* supra at 93D-E." [marked in bold for emphasis]

[34] In determining the question of when the applicants became aware of all the facts necessary to institute the present matter, I must therefore take into account that their cause of action is as defined in the above passage from *Johnsen v AFC*. Their status as interested persons and extent of their interest thereof. From the perspective of existing, future or contingent rights.

[35] Such inquiry must take into account the circumstances of the matter. The arguments before me were marked by a fundamental disparity. In essence, the parties were not aligned on the nature of the debt. Mr *Mpofu* took the approach that the debt was defined from the relief, namely the quest to have ownership registered in the applicants` names.

[36] The circumstances confirming existence of a cause of action (to mount declaratory proceedings) were traceable to 24 November 2017, counsel submitted. Ms *Mahere* on the other hand, argued that at that stage there was no need for the applicants to approach the court as there were other avenues to assert the rights acquired under the Sale of Shares Agreement.

[37] The threats issued by Metallon were addressed via procurement of the Inspection Certificates. As such, the applicants secured, and subsequently enjoyed peaceful and undisturbed possession of the claims from 2017 to date. That security was only disturbed when the Provincial Mining Director declined to issue the Inspection Certificates in 2023.

[38] In resolving the point, I commence with the recognition that the applicants seek declaratory relief based on rights allegedly conferred to them under the Sale of Shares Agreement. This position necessitates an interpretation by the court, of the terms of the Sale of Shares Agreement. I highlighted in the preceding paragraphs, the key contractual provisions regarding the applicants` claim to existing, future or contingent rights in the mining sites under contestation.

[39] Which takes me to the Inspection Certificates themselves. The Sale of Shares Agreement related to a transaction regarding an entity regulated in the main, by the Mines and Minerals Act [Chapter 21:05] ("the Mines and Minerals Act"). Clause 4.1 of the contract provided thus: -

> "4.1 The seller undertakes to apply for any required Regulatory Approvals for the transaction within thirty (30) Days of the date of this agreement. If the approvals are not obtained within thirty days, (30), both parties shall work together to ensure that they are obtained thereafter and shall negotiate in good faith for an extension of this Agreement."

[40] Inspection Certificates are provided for (inter alia) under Part IX of that statute dealing with Preservation of Mining Rights, and Part XVI on Preservation of Mining Rights. Various rights and obligation arise from the certificates. Argument did not venture into such matters. Nor did counsel from both sides focus on the distinction, based in the Mines and Minerals Act, of possession and ownership. Reduced to the core, the arguments defined debt as arising from possession (applicants) and ownership (Metallon).

[41] With little raised in argument on ownership, I turn to possession. The applicants` tale is that they acquired the rights issuing from the claims under the contract. The contested claims had been identified during the due diligence exercise and delivered in terms of clause 7 of the Sale of Shares Agreement. The applicants sought the intervention and endorsement of an administrative authority. The issuance of the Inspection Certificates was not attacked as an invalidity. Neither was the issue of non-registration raised as statutory breach which impugned possession.

[42] If anything, these become matters for the main matter and arguments on the merits. The issuance of the certificates must also be considered against the established principle of presumptions on validity of administrative acts. (See*Econet Wireless (Pvt) Ltd* v *The Minister of Public Service Labour and Social Welfare & Others* SC 31 -16).

[43] I am not persuaded that Metallon placed sufficient facts to demonstrate that the causa - namely declaratory relief sought-was established when the rights in the claims outside

Mining Lease 33 was challenged. On the other hand, the applicants took steps to assert what they believed to have acquired, and received by way of delivery, in terms of the contract.

[44] On this aspect, I make the additional point (and confining my views on such purely to the determination of the point *in limine*) that nothing turns on the explanation tendered by Mr Makotore that Metallon could not exercise its rights because it suffered from the dereliction and dysfunctionality of impugned corporate rescue proceedings.

[45] The facts of the present matter would, in my view, be distinguished from those obtaining in *Patel v Controller of Customs & Excise (supra).* In that decision, a plaintiff neglected to institute proceedings within statutory timelines partly on the belief that an alternative course of action interrupted the running of prescription.

[46] GUBBAY J (as he then was), observed that the running of prescription was defined in the relevant Act as being the point of seizure rather than the subsequent forfeiture. He observed as follows at page 86; -

> "The cause arises with **the first material fact** which has to be proved to entitle the aggrieved party to succeed. An application of this approach convinces me that the cause of the plaintiffs action, which is expressed to be for D the return of the articles seized, arose on 2nd and 6th August, 1979, the dates; upon which the seizures were effected." [marked in bold for emphasis]

[47] In *Patel,* the initial act of seizure marked the existence of a material fact which triggered the running of prescription. The challenge by Metallon, under the circumstances herein, did not. As noted in *Patel,* the court looks at **the first material fact** rather than just any event that occurs in relation to the matter. Apart from its initial protestation, Metallon took the matter no further.

[48] Given the aforegoing, I am inclined to agree with Ms *Mahere* that the reckoning of prescription ought to commence at the stage that the Provincial Mining Director declined to issue the Inspection Certificates. The first point *in limine* must therefore fail.

ANALYSIS OF THE ARGUMENTS: -MATERIAL DISPUTE OF FACTS

[49] I start with the reminder sounded in rules 6 and 7 of the High Court (Commercial Division) Rules SI 123-20 ("Commercial Court Rules") which provide thus; -

> **6 Commencement of proceedings**
> (1) Proceedings in the court shall, except in the case of proceedings which by these rules or under any other law are required to be instituted by any other specified mode of commencement, be instituted by way of application.
> (2) Proceedings shall be instituted in the relevant form as may be prescribed.
>
> **7 Determination of nature of proceedings**
> (1) Proceedings—
> (a) in which the sole or principal question at issue is or is likely to be one of the interpretation of any law or of any instrument made under any law, or of any deed, contract or other document, or some other questions of law, shall be instituted by way of application;
> (b) in which there is likely to be a substantial dispute of fact or for any other reason a person considers that the proceedings may not appropriately be instituted by way of an application, shall be instituted by way of a summons commencing action.

[50] The above excerpt in the Commercial Court Rules, themselves a recent promulgation in our jurisdiction, reiterate the age-old reminder that parties should give careful thought to which procedure to adopt before approaching the court for relief. Rule 6 suggests that unless the rules or some other law (including common law) suggest otherwise, parties must proceed by way of motion.

[51] Rule 7 also issues guidelines on when a party should adopt motion or action procedure. The reminders in the rules do no more that assert the position long set out in the classic decision of *Room Hire Company (Pty) Ltd v Jeppe Street Mansions (Pvt) Ltd* 1949 (3) SA 1155[6].

[6] See also *Boustead Beed (Pvt) Ltd v Triangle Limited* HH 576-24 and *Streamspace Incorporated (Pvt) Ltd v Hayes Construction & Ors* HH 53-25.

[52] Both counsel correctly drew my attention to the relevant matters influencing a determination of whether there is a material dispute of fact or not. The court must take a two-stage approach. Firstly, applying the test in Supa Plant, it must establish if there is a material dispute of fact. And if so, decide whether to take a robust approach or punish the applicant. McNALLY J (as he then was) summed it up in *Masukusa* as follows at 235; -

> "A court will take a robust view of conflicts of fact where it thinks it can solve the A issue despite the apparent conflicts - see for instance *Joosab and others v Shah* 1972(1) RLR 137;1972 (4) SA 298 (R) and *Lalla v Spafford NO and Others* 1973 (2) RLR 241; 1974 (1) SA 191 (R). This happens every week, for example, in applications for maintenance *pendente lite*. Even where the conflicts cannot be resolved without evidence the Courts will B not take the attitude that they must punish the applicant for following the wrong procedure. They will seek to save further wasting of costs by referring the matter for oral evidence or ordering the application to stand as summons, or ordering the papers to stand as pleadings, depending on the circumstances. See *Smit v Smit* 1980 (3) SA 1010 (O) at 1015 B-E. **But there are limits**. For instance the Court will not allow oral evidence to prove facts which the affidavits themselves should have presented – *Hymie Tucker Finance Co (Pty) Ltd v Alloyex (Pty) Ltd* 1981 (4) SA 175 (N) at 179F. Nor will the Court automatically and *mero motu* allow the matter to go to evidence where counsel advocates the procedure only as a fall-back D position in the event that this application is not granted: see *Joh- Air (Pty) Ltd v Rudman* 1980 (2) SA 420 (T) at 428 *et seq,* citing *Di Meo v Capri Restaurant* 1961 (4) SA 614 (N)."

[53] I now turn to the specific question raised by Mr *Mpofu* in the second point *in limine*. Are there bona fide material disputes of fact which cannot, on the papers before me be resolved? Even on adopting the age-old robust approach? I think not and here are my reasons.

[54] I have examined the six (6) heads of factual disputations which Mr *Mpofu* argued bear out the irreconcilable differences. I need not interrogate each. These matters are but a summation of the contestations exchanged between the two sides to the dispute. In so concluding, I have before me, a comprehensive bundle some 918 pages in length. There are

affidavits founding, opposing, answering and supporting. These being supported by a ream consisting of the Sale of Shares Agreement plus reports, maps, correspondence and diagrams.

[55] In the matters emerging from the affidavits briefly adverted to above, there were averments and replies which traversed all aspects raised. Ultimately, it becomes a matter of which party will prevail on the merits. On a reading of Supa Plant Investments, I detect no bona fide dispute of fact. At this juncture, I believe sufficient material from which to make a determination has been placed before the court. Of course I note that the question of material dispute of facts was raised as a preliminary point. Without further interrogation of the merits, the point becomes non-dispositive of the matter.

DISPOSITION

In view of the aforegoing, it is hereby ordered that

1. The two (2) points *in limine* moved by the second respondent on prescription and the existence of material disputes of facts irreconcilable on the papers, be and are hereby dismissed.

2. The second respondent to bear the costs of suit.

Scanlen and Holderness- excipient/second respondent`s legal practioners
Moyo and Jera -respondent/ applicants` legal practitioners

[CHILIMBE J___19/5/26]

